



CHAPTER xxiii.

An Act to confirm a Provisional Order under the A.D. 1924.
Private Legislation Procedure (Scotland) Act
1899 relating to Coatbridge Burgh Extension.
[14th July 1924.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Coatbridge Burgh Extension Order Confirmation Act 1924. Short title.

A.D. 1924,

S C H E D U L E.

COATBRIDGE BURGH EXTENSION.

Provisional Order to extend the boundaries of the Burgh of Coatbridge and for other purposes.

WHEREAS the provost magistrates and councillors of the burgh of Coatbridge (hereinafter called "the Town Council" and "the existing burgh" respectively) are the municipal and local authority within the existing burgh and are charged with the administration and management thereof:

And whereas it is expedient that the boundaries of the existing burgh should be extended as hereinafter provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh and all public and local Acts and Orders relating to and in force for the time being within or applicable to the existing burgh should as the same are amended by this Order be applied to the burgh as extended by this Order and to the inhabitants thereof:

And whereas it is expedient that the district annexed by this Order to the existing burgh should form part of the first ward of the existing burgh:

And whereas it is expedient that the Town Council should be empowered to levy rates and assessments within the extended burgh and to borrow money on the security thereof:

And whereas it is expedient that the further powers in this Order contained should be conferred upon the Town Council:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899;

[14 & 15 GEO. 5.] *Coatbridge Burgh* [Ch. xxiii.]
Extension Order Confirmation Act, 1924.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

A.D. 1924.
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1. This Order may be cited for all purposes as the Coatbridge Burgh Extension Order 1924. Short title.

2. This Order shall (except as otherwise in this Order provided) commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.” Commence-
ment of
Order.

3. In this Order unless there be something in the subject or context repugnant to such construction the following expressions shall have the meanings respectively assigned to them in this section (that is to say) :— Interpre-
tation.

“The existing burgh” means the burgh of Coatbridge within the limits and boundaries thereof existing immediately previous to the commencement of this Order;

“The burgh” means the burgh of Coatbridge as extended by this Order;

“The district annexed” means the area annexed to the existing burgh by this Order;

“The Town Council” means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be;

“The magistrates” means the magistrates of the existing burgh or of the burgh as the case may be and includes the provost and bailies;

“The county council” means the county council of the county of Lanark and includes any district committee thereof;

“The town clerk” means the town clerk of the existing burgh or of the burgh as the case may be and includes any deputy acting for him;

“The Burgh Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911 and any Acts amending or extending the same;

“The Town Councils Acts” means the Town Councils (Scotland) Acts 1900 and 1903.

[Ch. xxiii.] *Coatbridge Burgh* [14 & 15 GEO. 5.]
Extension Order Confirmation Act, 1924.

A.D. 1924.

Extension
of burgh
boundaries.

4. From and after the fifteenth day of May in the year one thousand nine hundred and twenty-four the municipal and police boundaries of the existing burgh shall be and are hereby extended so as to include and shall include the lands and area within the limits defined in the schedule to this Order situate in the parish of Old Monkland and the county of Lanark and the district annexed shall as from and after that date for the purposes of this Order be disjoined from the county of Lanark Provided always that the description of boundaries contained in the said schedule shall be subject to the rules of construction laid down in section 5 of the Representation of the People (Scotland) Act 1832.

Deposit of
map of
burgh.

5. A map of the burgh of which seven copies have been signed by Philip Francis Wood senior counsel to the Secretary for Scotland under the Private Legislation Procedure (Scotland) Act 1899 shall within one month after the commencement of this Order be deposited as follows (that is to say) one copy in the office of the Secretary for Scotland Whitehall London one copy with the town clerk two copies with the sheriff clerk of Lanarkshire that is one at each of his offices in Glasgow and Airdrie respectively one copy with the Board of Trade one copy with the Commissioners of Customs and Excise and one copy with the Ministry of Agriculture and Fisheries If there be any discrepancy between the boundaries as delineated on the said map and the boundaries as described in the schedule to this Order the said map shall be deemed to be correct and shall prevail.

For pro-
tection of
London
Midland and
Scottish
Railway
Company.

6. Nothing in this Order shall prejudice diminish or in any way affect or interfere with the rights and powers of the London Midland and Scottish Railway Company in over or in respect of Lochend Loch or the waters therein or thereof which rights and powers may be exercised as fully and effectually after as before the extension of the burgh by this Order authorised.

District
annexed part
of first ward.

7. The district annexed shall for all purposes be added to the first ward of the existing burgh.

Parochial
arrange-
ments not
to be
affected.

8. The lands and heritages within the district annexed shall remain parts and portions of the parish of Old Monkland within which they now lie and shall not be affected by any of the provisions of this Order in so far as regards the settlement relief or management of

the poor the erection and maintenance of district lunatic asylums the imposing or levying or the payment of poor rates or education rates or any burdens for purposes other than those for which the said lands and heritages will be assessed under the provisions of the Burgh Police Acts or any other public or local statutes presently affecting or which may hereafter affect the existing burgh and of this Order. A.D. 1924.

9. Subject to the provisions of this Order all jurisdictions rights powers and authorities heretofore exercised by the county council or other local authority within or over the district annexed or any part or parts thereof (with the exception of such jurisdictions rights powers and authorities (if any) as are presently exercised by the county council or other local authority other than the Town Council within the existing burgh or any part thereof) shall cease and determine from and after the fifteenth day of May one thousand nine hundred and twenty-four. Powers of local authorities to cease in district annexed.

10. Every rate charge or assessment (except such rates or assessments as are presently requisitioned for or levied and collected by the county council or the parish council within the existing burgh or any part thereof) authorised to be requisitioned for or levied and collected by the county council or other local authority having jurisdiction over the district annexed or any part or parts thereof but which shall not have been actually imposed previous to the fifteenth day of May one thousand nine hundred and twenty-four shall on that date cease and determine within the district annexed and thereafter all assessments and rates leviable within the existing burgh by the Town Council shall thenceforth be leviable on and within the burgh in the same way and manner as the same are leviable on and within the existing burgh. Assessments on burgh.

11. Every rate charge or assessment which shall have been actually imposed by the county council or any local or other authority who had jurisdiction within the district annexed or any part thereof previous to Whitsunday one thousand nine hundred and twenty-four together with all arrears thereof shall continue to be due and payable and may be levied and collected by the authority which respectively imposed the same and Recovery of assessment within district annexed.

[Ch. xxiii.] *Coatbridge Burgh* [14 & 15 GEO. 5.]
Extension Order Confirmation Act, 1924.

A.D. 1924. — by the same ways and means and under the same restrictions and regulations as if this Order had not been confirmed and shall be received and applied by such authorities respectively to and for the purposes for which the same were authorised to be levied.

Extension
and applica-
tion of
provisions
of Acts and
certain
rights to
burgh.

12. The provisions of all public general and all local Acts which apply to the existing burgh shall apply to the burgh in the same way and manner and as fully to all intents and purposes as they apply to the existing burgh and all rights powers jurisdictions (civil and criminal) authorities privileges immunities and obligations at present enjoyed possessed by or incumbent on the Town Council the magistrates or the inhabitants of the existing burgh whether at common law or by statute or otherwise including all powers of imposing levying or recovering assessments rates and taxes shall from the fifteenth day of May one thousand nine hundred and twenty-four extend and apply to the burgh and the inhabitants thereof Provided that nothing in this section shall extend the area of supply defined by the Coatbridge Electric Lighting Orders 1890 and 1905.

For
protection
of county
council.

13. The payment by the Town Council to the county council of the sum of four hundred and fifty pounds in pursuance of section 1 of the Local Government (Adjustments) (Scotland) Act 1914 as compensation for the annexation to the existing burgh of the district annexed is hereby sanctioned and confirmed and shall be accepted by the county council in full satisfaction of all claims whatsoever competent to the county council in connection with or arising in consequence of such annexation reserving always any question of compensation that may be competent to the county council in respect of revenue which may be derived from assessments on the minerals lying under the said area if and when the value of the assessments on the said minerals comes to be ascertained The said sum of four hundred and fifty pounds shall be applied by the county council with the sanction of the Secretary for Scotland either in the repayment of debt or for such other purposes as the county council may determine.

Borrowing
and
assessing
powers.

14. The Town Council in addition to any other statutory powers of borrowing which they now possess may for the purposes of the payment under the provisions of the section of this Order of which the marginal note is

“ For protection of county council ” borrow such sum of money as may be necessary under and on the security of the assessment leviable by the Town Council under the Public Parks (Scotland) Act 1878 and the Town Council may assign so much or such part as may be required of such assessment as security for the money which may be borrowed under the provisions of this section. Provided that any money borrowed under this section shall be repaid within a period of thirty years from the date or dates of borrowing the same. A.D. 1924.

15. Nothing in this Order contained shall interfere with the election of members to serve in Parliament for the county of Lanark and the county of Lanark shall for Parliamentary purposes remain in all respects as if this Order had not been confirmed. Not to affect election of members to serve in Parliament.

16. The Town Council shall continue to consist of the same number of members as at present and shall continue in office subject to the provisions of the Coatbridge Burgh Act 1885 the Town Councils Acts and other statutes regulating the election of magistrates and councillors and the order of their retirement shall not be affected. Continuance in office of town council.

17. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council out of any moneys in their hands or out of money borrowed under the powers of this Order. Provided that if such costs charges and expenses are paid out of borrowed money the same shall be repaid within five years from the commencement of this Order. Costs of Order.

The SCHEDULE to the foregoing Order.

(Referred to in the section of this Order of which the marginal note is “ Extension of burgh boundaries.”)

The area of ground lying in the parish of Old Monkland and county of Lanark embraced within the following limits videlicet by a line commencing at a point on the existing burgh boundary thirty yards or thereby north of the Monkland Canal west of the Blair Bridge thence northward following the existing burgh boundary west of the west side of Drumpellier Street

[Ch. xxiii.] *Coatbridge Burgh* [14 & 15 GEO. 5.]
Extension Order Confirmation Act, 1924.

A.D. 1924A to a point on the south side of the highway from Coatbridge to Townhead thence in a north-westerly direction following the south side of the said highway for a distance of two hundred and seventeen yards or thereby to the property belonging or reputed to belong to William Marshall thence south-westward north-westward and northward along the boundaries of the said property to the south side of the said highway from Coatbridge to Townhead thence north-westward along the south side of the said highway for a distance of one hundred and eighty-seven yards or thereby thence southward following the fence there for a distance of seventy-three yards or thereby to the edge of the moss-land thence westward and north-westward following the north side of the said moss-land to a point on the dismantled mineral railway passing under the road to Lochend three hundred and forty yards or thereby south of that road thence westward to a point on the fence which leads northward from the east side of Lochend Loch to the said road to Lochend three hundred and sixty-seven yards or thereby south of the said road thence northward following the said fence to a point thereon two hundred and eighty-three yards or thereby south of the said road to Lochend thence north-westward to and following the ditch along the north side of Lochend Loch for a distance of five hundred and twenty-seven yards or thereby to the sluice which regulates the water between Lochend and Woodend Lochs thence southward along the runner between Lochend Loch and the said sluice to the edge of Lochend Loch at high water level for a distance of forty-two yards or thereby thence westward along the edge of Lochend Loch at high water level for a distance of one hundred and seventy yards or thereby thence southward and south-eastward along the edge of Lochend Loch at high water level for a distance of three hundred and eighty-six yards or thereby to the march between the lands of Heatheryknowe and what was formerly part of Drumpellier Estate now Drumpellier Park the property of the town council thence south-westward along the said march which is partly an imaginary straight line for a distance of seven hundred yards or thereby till it reaches the footpath in the plantation where the latter meets the south-west boundary fence of Gilmourneuk thence south-eastward along the said boundary fence for a distance of thirty-three yards or thereby thence north-eastward along the boundary fence between the plantation and Gilmourneuk and onward to the west side of the road which leads through the plantation to Lochend Loch for a distance of nine hundred and fifty-three yards or thereby thence south-eastward along the west side of the said road for a distance of one hundred yards or thereby thence south-eastward through the plantation in an imaginary straight line to and continuing along the east side of the service road to Gilmourneuk fields for a distance of four hundred and seventy-three yards or thereby to a point on

[14 & 15 GEO. 5.] *Coatbridge Burgh* [Ch. xxiii.]
Extension Order Confirmation Act, 1924.

the north side of the service road which leads along the north side of the London and North Eastern Railway between Glasgow and Edinburgh (Glasgow and Coatbridge Line) thence eastward along the north side of the said road for a distance of one hundred and sixty-six yards or thereby to the bridge which carries the road to Lochend Loch over the said railway thence eastward along the north boundary of the said railway for a distance of three hundred and thirty-seven yards or thereby thence southward across the said railway for a distance of fifty-three yards or thereby to the north boundary of the Monkland Canal thence along the north and east boundary of the said canal for a distance of six hundred and eighty-three yards or thereby to the point of commencement.

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